



Motion on Transitional Provisions

PROPOSED, NOT YET ADOPTED

Knoxville Area Chapter of the Democratic Socialists of America

Document type and number	Motion No. 1 (TRN)
Tier	Tier 1 attachment to the revised bylaws
Adopting authority	Two consecutive General Meetings (Article XII of the 2016 bylaws)
Date of adoption	___ (pending)
Amendment dates	None to date
Effective date	___ (pending; on the second approving vote)

Purpose, Attachment, and Force

This Motion carries the transitional provisions of the revised bylaws of the Chapter: the terms that govern the initial adoption and effective date of the revised bylaws, the continuity of officers across the transition, the first elections held under the revised bylaws, and the retirement of the transition machinery once it is spent. It is a standalone motion, submitted and adopted with the revised bylaws under the amendment procedure of the prior bylaws, by the same authority and at the same approving votes.

On its passage this Motion attaches to the revised bylaws and carries the same force and precedence as a provision of the revised bylaws, as Article XXII, Section 4 of the revised bylaws provides. It is subordinate, as the revised bylaws are, to the national documents, which control in any conflict (Article II, Section 2); it stands above every Code, Rule, and Policy in the hierarchy of Article XVIII, Section 2; and it may be amended only under Article XX.

In this Motion, “the revised bylaws” means the Bylaws of the Knoxville Area Chapter of the Democratic Socialists of America adopted with this Motion as a complete revision of the bylaws adopted June 6, 2016, as amended, and “the prior bylaws” means the bylaws in effect at the time the revised bylaws are introduced. A reference to an Article, or to a Section of an Article, other than a reference to a Section of this Motion, is a reference to the revised bylaws.

Section 1. Initial Adoption

The initial adoption of the revised bylaws proceeds under the amendment procedure of the bylaws in effect at the time the revised bylaws are introduced, and not under Article XX of the revised bylaws. The identical-text and heightened-action requirements of Article XX therefore do not govern this initial adoption, which is approved by a majority vote at two consecutive meetings as the prior bylaws require.

Section 2. Effective Date

The revised bylaws take effect on the announcement of the result of the second approving vote on their adoption. Upon taking effect, the revised bylaws supersede and replace all prior bylaws of the Chapter in their entirety.

Section 3. Continuity of Continuing Officers

The offices of Co-Chair, Secretary, and Treasurer exist under both the prior bylaws and the revised bylaws. Those officers, elected under the bylaws then in effect, continue in office under the revised bylaws with no gap in their terms, on the August 1 to July 31 cycle established by Article IV, for the remainder of those terms. The office of Steward is created by the revised bylaws and does not exist until they take effect; it is first filled under Section 4.

Section 4. First Election of the Steward and Harassment Grievance Officers

The office of Steward and the elected office of Harassment Grievance Officer come into existence when the revised bylaws take effect. Because the ordinary nomination window could not run before those offices existed, the first Steward and the first Harassment Grievance Officers are elected by floor nomination under Article IX, Section 7 at the meeting at which the second approving vote on the revised bylaws is taken, immediately after that vote, or, if an election cannot be completed at that meeting, at the next General Meeting. Floor nomination, including self-nomination, applies equally at that next General Meeting. The conduct of these first elections is governed by Article IX and the parliamentary authority of Article XIX until the Code on Election Procedures takes effect. The members so elected take office on their election and serve until the first regular annual election under Section 6.

Section 5. Status of Prior Harassment Grievance Officer Appointments

The prior bylaws did not provide for an elected Harassment Grievance Officer, and there is no July election of a Harassment Grievance Officer under the prior bylaws. Any person serving as a Harassment Grievance Officer by appointment under prior Chapter practice ceases to hold that role at the effective date, and the office is filled only by election under Section 4 and Article XIII. Until a Harassment Grievance Officer is elected under Section 4, the Chapter is in the minimum-coverage shortfall addressed by Article XIII, Section 6, and the Steering Committee proceeds under that Section. A person serving by appointment who is carrying an open grievance on the effective date continues to carry that grievance until a Harassment Grievance Officer elected under Section 4 assumes it, and for that limited purpose remains subject to the confidentiality and recusal duties of Article XIII.

Section 6. First Regular Annual Election

The first regular annual election of all officers and Harassment Grievance Officers under the ordinary nomination window of Article IX occurs at the first Annual Convention under Article VII held after the effective date. The officers continued under Section 3 and the Steward and Harassment Grievance Officers first elected under Section 4 all serve until that Annual Convention, when the regular annual cycle resumes.

Section 7. Transmittal to National

The thirty-day transmittal of the adopted bylaws in their entirety to the National Office of DSA required by Article XX, Section 8 applies to the adoption of the revised bylaws.

Section 8. Removal of Spent Provisions

Once the revised bylaws have taken effect and the transition provisions of this Motion have been carried out, this entire Motion is spent and of no further effect. The Secretary may retire this Motion from the published bylaws set, and may remove the attachment provision at Article XXII, Section 4 of the revised bylaws from their published text, as a technical, non-substantive correction, without a further amendment vote, and may update any cross-references, noting the removals in the registries under Article XVIII, Section 5. The revised bylaws themselves, which are

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not part of the transition, are otherwise unaffected and continue in force. The retirement does not change any continuing right, duty, or office.